

Commission Agreement Template

Between Company and Sales Representative

This template is provided for informational purposes. Consult a qualified attorney before use.

This Commission Agreement ("Agreement") is entered into on:

Date: _____

Company Name: _____

Company Address: _____

Sales Representative Name: _____

Sales Representative Address: _____

This Agreement outlines the commission structure and payment terms for sales opportunities and deals worked through the SalesExchange platform.

1. Relationship of Parties

The Sales Representative is an **independent contractor** and not an employee of the Company. Nothing in this Agreement shall be construed to create an employer-employee relationship, partnership, or joint venture.

2. Opportunity / Product / Service Covered

This agreement applies to the following product(s) or service(s):

3. Territory or Market (if applicable)

4. Commission Structure

Commission Type (check one):

- ☐ Percentage of Revenue
- ☐ Percentage of Profit
- ☐ Flat Fee Per Sale

⑥ Other: _____

Commission Amount:

⑥ _____ % per closed deal

⑥ \$ _____ per closed deal

5. When Commission is Earned

Commission is earned when (check one):

⑥ When the deal is marked **Closed Won** in SalesExchange

⑥ When the customer pays the Company

⑥ When the customer signs the agreement

⑥ Other: _____

6. Commission Payment Schedule

Commission will be paid:

⑥ Within _____ days of deal closing

⑥ Within _____ days of customer payment

⑥ Monthly

⑥ Quarterly

⑥ Other: _____

Payment Method:

⑥ ACH

⑥ Check

⑥ Wire Transfer

⑥ Other: _____

7. Deal Registration & Protection

Deals must be registered and tracked through SalesExchange. The Sales Representative will receive commission for deals they originated and worked that result in a closed sale, as tracked in the SalesExchange platform.

8. Non-Circumvention

The Company and Sales Representative agree not to circumvent the SalesExchange platform by conducting business outside the platform for opportunities introduced through SalesExchange for the purpose of avoiding platform fees.

9. Termination

Either party may terminate this Agreement with _____ days written notice.

Termination does **not** affect commissions owed on deals that were registered, in progress, or closed after termination but originated before termination.

10. Confidentiality

The Sales Representative agrees not to share or use confidential company information, pricing, customer lists, or proprietary materials outside of selling the company's products and services.

11. Dispute Resolution

Any disputes arising under this Agreement shall be resolved between the Company and the Sales Representative. SalesExchange is not responsible for resolving payment disputes.

12. Signatures

Company Representative

Name:

Title:

Signature:

Date:

Sales Representative

Name:

Signature:

Date:

13. Commission Example (Optional)

Field	Example
Deal Size	\$10,000
Commission Rate	10%
Commission Earned	\$1,000
Payment Timing	30 days after customer payment